

TENTATIVE RULINGS**5/21/2026****02:00 PM**

101	Zepeda vs. Broker Soultions, Inc. 2019- 01051868	Final Accounting The Final Accounting hearing is continued to August 13 2026 at 2:00 p.m. in Department CX102. Plaintiff is ordered to file a declaration no later than 9 court days prior to the hearing regarding the status of distribution efforts. <u>If all settlement funds are not fully and finally disbursed by the filing deadline, counsel must request a continuance, or the court will set an OSC re: monetary sanctions.</u> The administrator states no unclaimed funds have been disbursed to the State Controller. ROA 349. She further states unclaimed funds will be disbursed to the State Controller by May 18, but does not specify the year or the exact amount of such funds. Id. The court's file thus cannot be closed at this time. Plaintiff to give notice.
102	Lopez vs. Vehicle Protection Specialists, LLC 2020- 01174402	Final Accounting On 04-17-2025, the court granted final approval of the parties' \$275,000 class action and PAGA settlement. ROA 228. The order and judgment was entered 05-05-2025. ROA 239. The court approved the following disbursements: • \$68,750 for attorneys' fees • \$10,000 for litigation costs • \$10,000 (\$5,000 each) for plaintiffs' enhancement awards • \$6,300 for settlement administrator's costs • \$15,000 to the LWDA for PAGA penalties • \$5,000 to Aggrieved Employees for PAGA penalties The administrator, Lisa Pavlik of Simpluris, Inc., reports the various payments were mailed on 06-18-2025. ROA 143. <i>The court observes the administrator failed to pay counsel the correct amount in attorney's fees, which has deprived class members of \$10,000.</i> ROA 243 ¶ 3. The administrator and counsel both fail to acknowledge this error.

		The court does not understand how this substantial overpayment could not have been realized by counsel immediately upon its receipt. Counsel is ordered to appear at the hearing to propose a prompt solution, including a timetable. Preliminarily, the court contemplates the following is necessary to achieve fairness to class members: 1. Repayment of \$10,000 plus interest at a rate of 10% per annum pursuant to California Code of Civil Procedure § 685.010(a) for the period from June 18, 2025 through June 1, 2026, the date upon which the Settlement Administrator should distribute the funds to class members. 2. The redistribution payments must include any applicable payroll taxes and the tax treatment of payments shall be consistent with the settlement, i.e., 10% wages and 90% interest. Settlement ¶ 32.
103	Fan vs. Cybercoders, Inc. 2021-01207940	Final Accounting The Final Accounting hearing is continued to August 20, 2026 at 2:00 p.m. in Department CX102. Plaintiff is ordered to file a declaration no later than 9 court days prior to the hearing regarding the status of distribution efforts. <u>If the settlement funds are not completely disbursed by the report deadline, including all unclaimed funds, counsel must request a continuance.</u> The court also sets an OSC re: monetary sanctions against plaintiff's counsel for the same date and time due to the failure to file a final accounting report, as previously ordered. ROA 138 ¶ 20. Any response to the OSC must be filed no later than 9 court days prior to the hearing. Court clerk to give notice.